

**FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY**

To be completed by the City, Town or County Clerk:			Formerly Held by: _____	
Date Filed: <u>9, 30, 15</u> <u>MR#124292</u>	Applicant: <u>Daghdog, LLC</u>		Trade Name (dba): <u>TBD</u>	
Basic Fee: <u>\$1500.00</u>	Annual Fee: <u>\$1500.00</u>	Prorated Fee: <u>\$</u>	Premise Address: <u>Address not assigned</u>	
Add'l Dispensing Room Fee: <u>\$</u>	\$	\$	Number & Street	
Transfer Fee: <u>\$</u>	\$	\$	City State Zip County	
Total License Fee Collected: <u>\$1500.00</u>	\$	\$	Mailing Address: <u>4201 East Vile Ave, #200</u>	
Publishing Fee Collect: <u>\$100.00</u>	\$	\$	Number & Street or P.O. Box	
Required Attachments Received: Yes ☒	City State Zip			
Advertising Dates (2 wks): <u>Oct 20, 27, 2015</u>	Business Telephone Number: <u>303, 623-0502</u>			
Hearing Date: <u>Nov 19, 2015</u>	Fax Number: <u>()</u>			
Local Licensing Number: _____	E-Mail Address: <u>haus2halifaxdevelopment.net</u>			
For the license term: <u>Upon Issuance</u>	LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.			
Through: <u>March 31, 2016</u>				
A copy must be immediately forwarded to: State of Wyoming Liquor Division 6601 Campstool Rd. Cheyenne WY. 82002-0110				

FILING FOR	TYPE OF LICENSE OR PERMIT	To Assist the Liquor Division with scheduling inspections:
☒ NEW ☐ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP	(CHOOSE ONLY ONE) ☒ RETAIL LIQUOR LICENSE ☐ on-premise only (Bar) ☐ off-premise only (Package Store) ☒ combination on/off premise (Both) ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☐ WINERY ☐ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from _____ to _____ DAYS OF WEEK (e.g. Mon through Sat) HOURS OF OPERATION (e.g. 10a - 2a) <u>TBD</u>
FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____	FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☒ LLC ☐ PARTNERSHIP ☐ LLP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION	

1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10 x 12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: W.S. 12-4-102(a)(i): (Please submit a drawing of the establishment that includes the dispensing room)

Approximately 30 feet by 40 feet room in front half of building

(b) If Winery or Microbrewery, also list manufacturing facility. (e.g. MFG: 10' X 12' room in SW portion of bldg.)

(c) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(d) Provide the legal description and the zoning of the site where the applicant will conduct business:

Site is currently zoned M12-1, see attached for legal

2. Do you W.S. 12-4-103 (a) (iii):

(1) OWN the building in which sales room is located?

☒ YES (own)

(2) LEASE the building in which sales room is located?

☐ YES (lease)

(A) DATE lease expires _____ located on page _____ paragraph _____ of lease document.

(B) Provision for SALE of alcoholic or malt beverages located on page _____ paragraph _____ of lease.

NOTE: Attach a true copy of the lease to application. Lease MUST contain provision for SALE OF ALCOHOLIC or MALT BEVERAGES and be valid THROUGH the TERM OF THE LICENSE W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO
4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:
-
5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
If "YES", explain: _____
-
6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
-
7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application? ☐ YES ☐ NO
W.S. 12-4-407(a) W.S. 12-4-413(a)
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:
11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. **FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)
- (a) The name and address of the grand lodge or national organization is: _____
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO
-
13. **VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):
- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.
If the application is for a Club: State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
Hans Kohlmann	3/17/63	3405 E Eastman Denver, CO 80210	720 308-1541	9	100%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

COLORADO
STATE OF WYOMING)
COUNTY OF DENVER) SS.

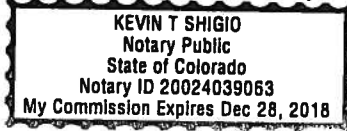
Before Me, KEVIN T. SHIGIO (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
DENVER County, State of Wyoming, personally appeared
COLORADO

HANS F. KUHLMAUN name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.

(Seal)



My Commission expires: 12-28-18

1. Hans F. Kuhlman
2. _____
3. _____
4. _____

Witness my hand and official seal:

K T Shigio
(Notary Public or other officer authorized to administer oaths)

Title NOTARY PUBLIC

Dated: 10-5-15

REQUIRED ATTACHMENTS:

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for two (2) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		

*Doughdog, LLC
4201 East Yale Ave
Suite 200
Denver, CO 80222
(303) 623-0502*

September 28, 2015

Honorable Mayor and City Council
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

RE: Retail Liquor License

Dear Mayor and City Council,

By introduction my name is Hans Kuhlmann, Manager and sole member of Halifax Development, LLC and Doughdog, LLC. Halifax Development, LLC and Doughdog, LLC are retail development companies based in Denver, Colorado. For the past two years we have been looking for a retail development site in Cheyenne along the Del Range corridor. This past March we entered into a Real Property Purchase Agreement with Georganne Walker Et Al, Karen Armour Trust and Jo Anne Hendryx, the owners of the twelve acre vacant tract of land located on the north west corner of Del Range and Powderhouse, (the Hendryx Property"). We are also in negotiations with the Airport Authority for a 1.68 acre vacant property on the north side of Del Range that is surrounded by the Hendryx Property. The Hendryx Property is currently in Laramie County and is zoned a combination of Low Density Residential (LR) and Medium Density Residential (MR) and the Airport Property is located in the City of Cheyenne and is zoned Medium Density Residential (MR-1) . Both Properties are currently located in the floodway and floodplain. It is our intention to annex the Hendryx Property into the City of Cheyenne and rezone both the Hendryx Property and Airport Property to a commercial zoning that permits the development of retail, restaurant, hotel and office uses. Attached to my License and/or Permit Application for a Retail Liquor License is a preliminary site plan of our proposed development. We have interest in this site from a number of national restaurants, some of which serve alcohol and will need the retail liquor license to operate. The site we have identified within our proposed development for such restaurant use is identified on the attached site plan and is on the Airport Property. We anticipate applying for annexation, rezoning and site plan approval of the property during the first few months of 2016 and if approved a construction start in spring of 2016 with an opening in spring of 2017. Should you have any questions please do not hesitate to contact me.

With best regards,



Hans F Kuhlmann

Manager and Sole Member of Halifax Development, LLC and Doughdog, LLC

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD F. MURRAY, III, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

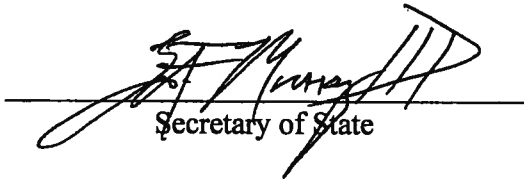
Dough Dog, LLC
is a
Limited Liability Company

formed or qualified under the laws of Wyoming did on **February 16, 2006**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2006-000508023**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

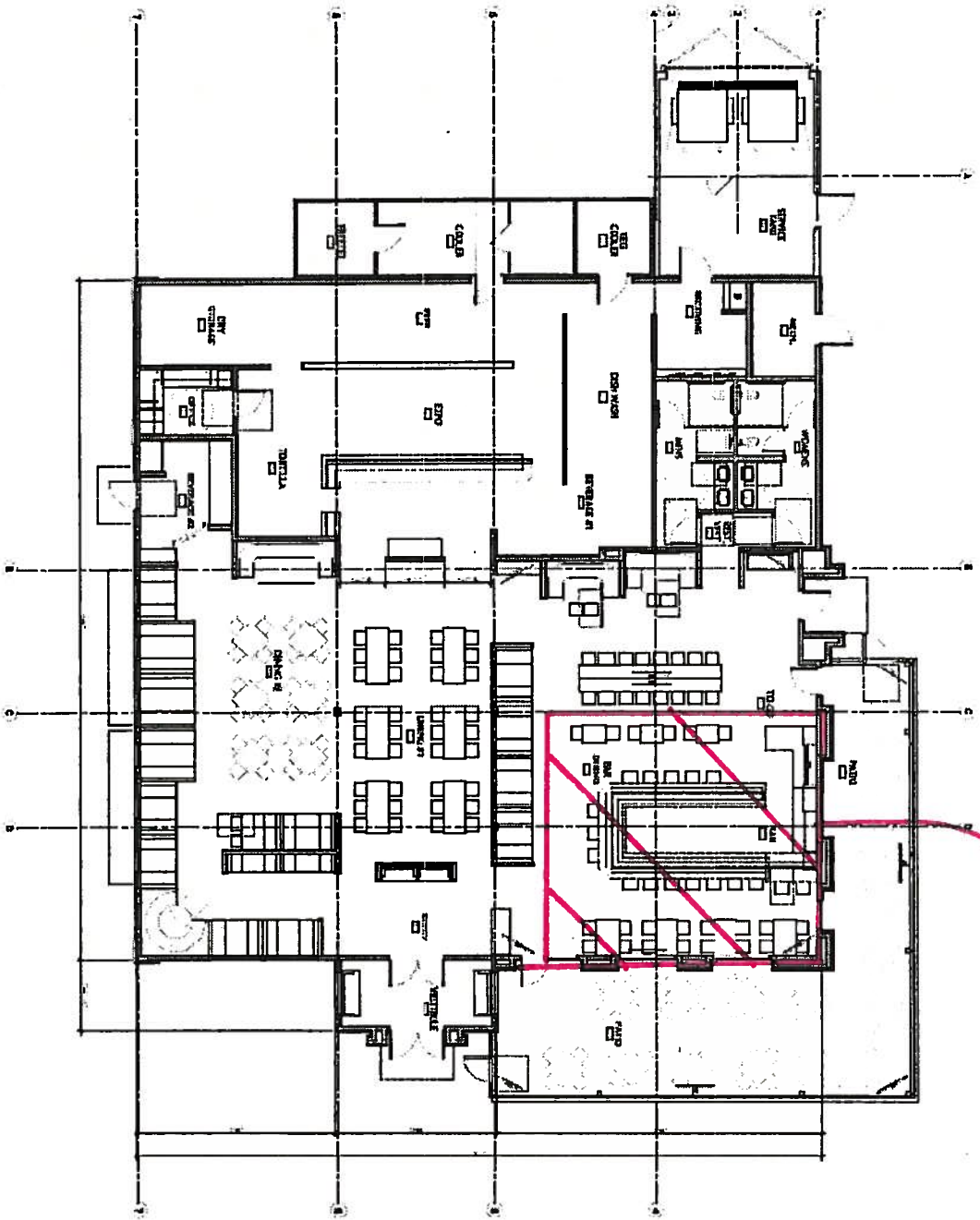
I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 5th day of October, 2015 at 10:53 AM. This certificate is assigned 018641120.




Secretary of State

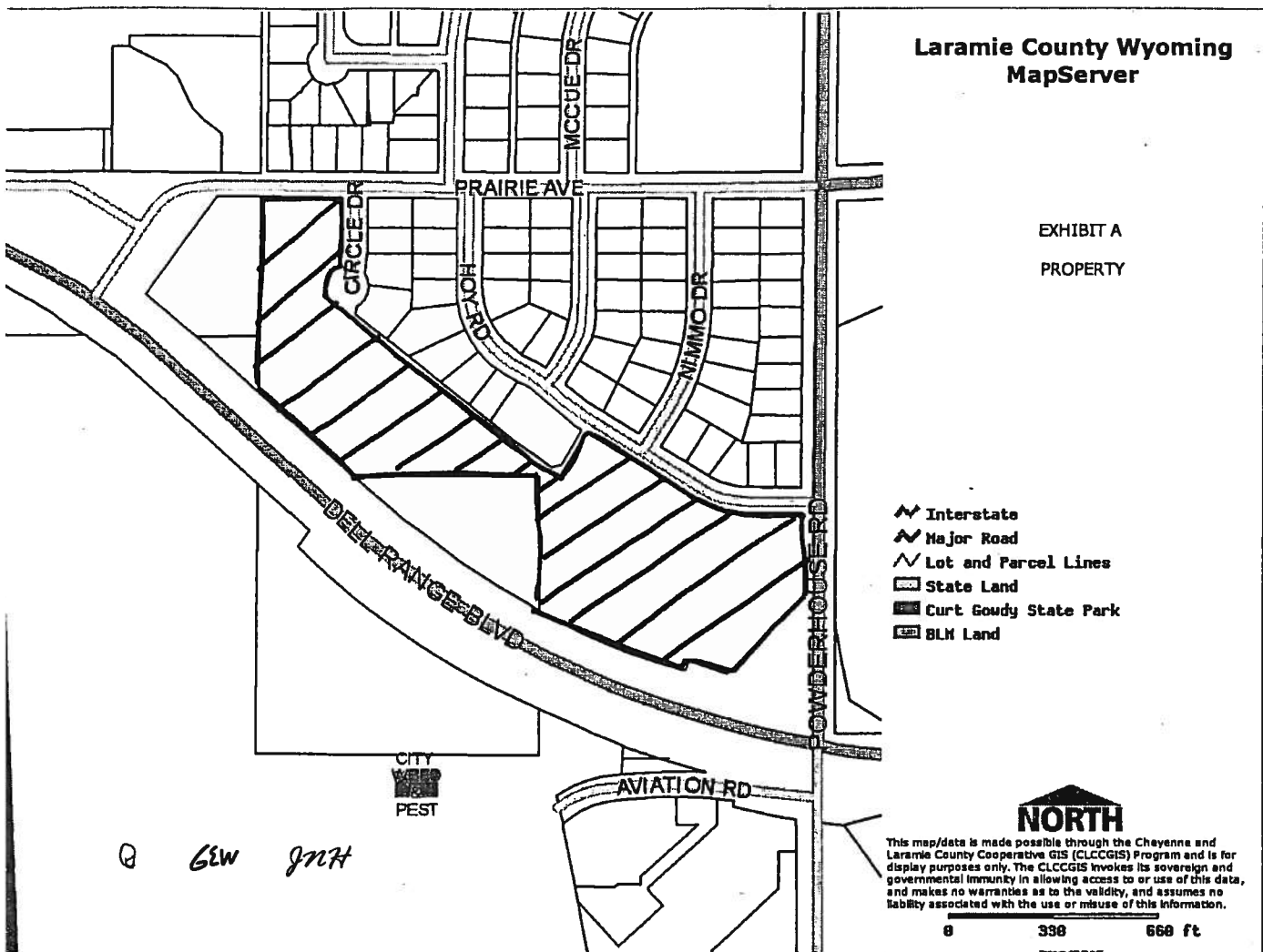
Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <http://wyobiz.wy.gov> and following the instructions displayed under Validate Certificate.

Floor Plan



Dispensing Room





Laramie County Wyoming
MapServer

EXHIBIT A
PROPERTY

- Interstate
- Major Road
- Lot and Parcel Lines
- State Land
- Curt Goudy State Park
- BLM Land



This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, and makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

0 330 660 ft

REAL PROPERTY PURCHASE AGREEMENT

THIS REAL PROPERTY PURCHASE AGREEMENT (hereinafter sometimes referred to as the "Agreement") is hereby made and entered into by and between Joanne Hendryx Et Al., (hereinafter sometimes referred to as the "Seller") and Halifax Development, LLC, a Minnesota limited liability company (hereinafter sometimes referred to as the "Purchaser").

WITNESSETH THAT:

WHEREAS, Seller desires to sell and Purchaser desires to purchase, upon the terms and conditions hereinafter set forth, 12.06 acre tract or parcel of land located at the north west corner of Powderhouse Road and Dell Range Boulevard in the City of Cheyenne, Laramie County, Wyoming and being more particularly described and/or shown on Exhibit "A" attached hereto and by this reference made a part hereof, together with all rights, easements and appurtenances pertaining thereto and all improvements, landscaping and foliage thereon (the "Property") and subject only to the Permitted Title Exceptions as defined herein;

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are all hereby acknowledged by each of the parties hereto, the parties hereto agree as follows:

1. Purchase Price. Subject to and pursuant to the following terms and conditions, Seller shall sell and transfer the Property to Purchaser and Purchaser shall purchase the Property from Seller and pay to Seller the sum of [REDACTED] (hereinafter sometimes referred to as the "Purchase Price"), by the delivery of immediately available and collectible funds, less the Earnest Money (as hereinafter defined) and subject to adjustment as provided herein.
2. Title/Survey/Due Diligence Materials. Within 21 days of the Effective Date hereof, [REDACTED] shall provide to Purchaser a current and complete title commitment letter on the Property prepared by the Title Company, along with complete and legible copies of all exceptions thereto.
3. Costs. [REDACTED] shall pay all recording or transfer taxes, tax collection fees and Seller's attorney's fees. Purchaser shall pay all recording fees on its recordable documents and the payment of its own attorney's fees. Purchaser shall pay the premium for title insurance in the amount of the Purchase Price.
4. Prorations. All real property ad valorem taxes shall be prorated (employing a 365-day year) between Purchaser and Seller as of the date of Closing based upon the most recently available property assessment. If a current assessment is not available for the year of Closing, taxes shall be prorated when the taxes can be ascertained and the provisions hereof shall survive the Closing and the delivery of Seller's deed. All assessments due or levied against the Property shall be paid in full by

Q GEW JNH

that any mineral, oil and gas activity conducted on the Property shall not impair the subjacent support of the Property, including such support as is necessary for the support of any structures that may be constructed thereon.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the day and year written below.

SELLER: Joanne Hendryx Et Al

By: Joanne N. Hendryx 3/28/2015 2:48 PM CDT
Joanne N. Hendryx DATE

By: GeorgeAnne E Walker 3/24/2015 8:19 AM MDT
GeorgeAnne E. Walker DATE

By: Karen N. Armour 3/24/2015 6:42 AM MDT
Karen N. Armour, Trustee of Karen N. Armour Trust

PURCHASER: Halifax Development, LLC a Minnesota limited liability company

By: Hans F. Kuhlmann 3-23-2015
DATE

Print Name: Hans F. Kuhlmann

It's: Manager